



GHRA FUELS, LLC

12790 S. Kirkwood Road, Stafford, TX 77477

Ph: 281-295-5359 creditapp@ghrafuels.com

GHRA FUELS APPLICATION PACKAGE

Please find below the required documents and instructions for completing the application process for fuel purchases and credit approval.

Documents (collectively, the “Agreement”):

1. Credit Application and Agreement, Guaranty, and Security Agreement
2. Consent to obtain consumer credit report and terms and conditions agreement
3. Personal/Corporate Guaranty
4. Electronic Funds Transfer (EFT) Authorization Agreement

Instructions:

1. Credit Application and Agreement, Guaranty, and Security Agreement: Please carefully review the enclosed Agreement, including the credit application form. Ensure that all required fields are completed accurately and provide any additional information or explanations where necessary.
2. Bank Information: Please double-check banking information on the application form for accuracy.
3. Attach Supporting Documents: A copy of (i) your delivery certificate and (ii) driver licenses for owners/officers.
4. All appropriate parties should sign and date, where indicated, the Credit Application and Agreement, Guaranty, and Security Agreement. Please be sure to review all information to certify the accuracy of the provided information. (Provide the appropriate party signatures on all relevant pages).
5. Return the complete GHRA FUELS Application Package and Agreement via email, mail or in person. The details for submission are as follows:

Email: creditapp@ghrafuels.com

Office Address: 12790 South Kirkwood Rd, Stafford TX 77477

Once the GHRA FUELS Application Package has been submitted, we kindly request your patience as we review, consider, and process the application. If you have any inquiries or need additional information, please do not hesitate to reach out to the Credit Team at 281-295-5351.

We appreciate your support and the opportunity to supply fuel to your store through GHRA FUELS, LLC.



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CREDIT APPLICATION AND AGREEMENT, GUARANTY, AND SECURITY AGREEMENT

All information must be completed in full. Incomplete information will cause delay in processing.

APPLICANT INFORMATION

GHRA # _____ BUSINESS TYPE: ☐ CORPORATION ☐ LLC ☐ PARTNERSHIP ☐ SOLE PROPRIETORSHIP ☐ OTHER LP/LLP

BUSINESS ENTITY NAME: _____ DBA: _____

BILLING ADDRESS: _____ CITY: _____ STATE: _____ ZIPCODE: _____

DELIVERY ADDRESS: _____ CITY: _____ STATE: _____ ZIPCODE: _____

IS PROPERTY FOR DELIVERY OWNED BY APPLICANT? _____ (Yes/No) IF OWNED, NAME OF OWNERSHIP ENTITY: _____

IF LEASED, EXPIRATION YEAR: _____ INFORMATION OF PROPERTY OWNER (Name/Address/Phone: _____

PHONE: _____ FAX: _____ EMAIL: _____

YEAR ESTABLISHED: _____ TAX ID (FEDERAL EIN): _____ CREDIT REQUESTED: _____

DELIVERY CERTIFICATE: TECQ #: _____ FACILITY #: _____ EXPIRATION DATE: _____

PRIMARY FUEL CONTACT (NAME/TITLE): _____ PHONE # : _____

EMAIL: _____ FAX # : _____

ACCOUNTS PAYABLE CONTACT (NAME/TITLE): _____ PHONE # : _____

EMAIL: _____ FAX # : _____

****COPY OF YOUR DELIVERY CERTIFICATE IS REQUIRED WITH YOUR APPLICATION****

PRINCIPAL OFFICER(S)/OWNER(S) INFORMATION - MUST BE COMPLETED IN FULL

1) NAME: _____ TITLE: _____

HOME ADDRESS: _____

CITY: _____ STATE: _____ ZIPCODE: _____ PHONE #: _____

DRIVER LICENSE #: _____ STATE ISSUED: _____ SOCIAL SECURITY #: _____ DATE OF BIRTH: _____

2) NAME: _____ TITLE: _____

HOME ADDRESS: _____

CITY: _____ STATE: _____ ZIPCODE: _____ PHONE #: _____

DRIVER LICENSE #: _____ STATE ISSUED: _____ SOCIAL SECURITY #: _____ DATE OF BIRTH: _____

3) NAME: _____ TITLE: _____

HOME ADDRESS: _____

CITY: _____ STATE: _____ ZIPCODE: _____ PHONE #: _____

DRIVER LICENSE #: _____ STATE ISSUED: _____ SOCIAL SECURITY #: _____ DATE OF BIRTH: _____

****COPY OF CURRENT DRIVER'S LICENSE IS REQUIRED****

TANK INFORMATION

NUMBER OF TANKS: _____ SIZE OF TANKS: _____ TANKS LOCKED: ☐ YES ☐ NO MONTHLY VOLUME: _____

BANK INFORMATION/CREDIT REFERENCES

BANK NAME: _____ BRANCH ADDRESS: _____

BANK OFFICER: _____ PHONE: _____ EMAIL: _____

ACCOUNT TYPE: ☐ CHECKING ☐ SAVINGS ACCOUNT # _____ ROUTING # _____



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BY EXECUTION BELOW, I HEREBY UNCONDITIONALLY AUTHORIZE BANK NAMED ABOVE TO RELEASE ANY AND ALL INFORMATION REQUESTED BY GHRA FUELS, LLC ("GHRA FUELS") AND ITS AFFILIATED ENTITIES FOR THE PURPOSE OF OBTAINING AND / OR REVIEWING THE BUSINESS AND PERSONAL CREDIT OF EACH OF THE PARTIES LISTED ABOVE. I FURTHER ACKNOWLEDGE AND AGREE THAT I AM EXPRESSLY AUTHORIZED (I) TO INSTRUCT AND AUTHORIZE THE ABOVE BANK/FINANCIAL INSTITUTION TO RELEASE OF ALL SUCH INFORMATION OF THE ABOVE NAMED PARTIES AND (II) TO PERMIT GHRA FUELS AND ITS AFFILIATED ENTITIES AND REPRESENTATIVES TO RECEIVE AND EVALUATE SUCH INFORMATION FOR THE PURPOSES OF THIS CREDIT APPLICATION AS WELL AS WITH RESPECT TO ANY BUSINESS RELATIONSHIP WITH GHRA FUELS AND/OR ITS AFFILIATED ENTITIES.

INFORMATION RELEASE AUTHORIZATION

NAME: _____ SIGNATURE: _____ DATE: _____

NAME: _____ SIGNATURE: _____ DATE: _____

NAME: _____ SIGNATURE: _____ DATE: _____

TRADE AND PERSONAL REFERENCES

TRADE REFERENCE (Business): _____ CONTACT: _____ PHONE: _____ EMAIL: _____

FUEL SUPPLIER: _____ CONTACT: _____ PHONE: _____ EMAIL: _____

PERSONAL REFERENCE (Not Relative): _____ RELATIONSHIP: _____ PHONE: _____ EMAIL: _____

CONSENT TO OBTAIN CONSUMER AND BUSINESS CREDIT REPORTS; ACKNOWLEDGEMENTS AND CERTIFICATIONS

Each of the undersigned individual(s), in his/her individual capacity as well as in his/her capacity as an authorized principal officer and/or owner of the above applicant entity (the "Customer", and together with all of the undersigned individuals, collectively, the "Customer Parties"), hereby expressly and unconditionally consents, agrees, confirms, acknowledges, and certifies to each of the following statements to and for the benefit of and material reliance by each of GHRA FUELS and/or its affiliates and associated entities (with GHRA FUELS, collectively, the "GHRA FUELS PARTIES") as well as the above named bank(s) and other references, that: (i) the Customer wishes to create a business relationship with GHRA FUELS in order to request the delivery of fuel and fuel products (collectively, the "Fuel Products") from GHRA FUELS to the Customer (the above applicant entity), (ii) only GHRA FUELS and none of the other GHRA PARTIES nor any of the affiliates of GHRA FUELS shall be deemed to be transacting with the Customer or any other party to receive and fulfill, at the discretion of GHRA FUELS, Customer's orders for any Fuel Products, (iii) there are no other agreements, approval or consent requirements, or any restrictions or limitations of any kind that would prevent, restrict, or otherwise deter the Customer from purchasing Fuel Products from GHRA FUELS or the Customer Parties from entering into this Agreement, (iv) the Customer is applying for credit and/or a line of credit from GHRA FUELS for the purpose of ordering and, upon approval by GHRA FUELS, purchasing Fuel Products from GHRA FUELS, (v) each of the undersigned, including the Customer, is fully aware and recognizes that his/her/its individual and business credit history may be a factor in the evaluation of the creditability and credit history of the Customer applicant for purposes of this Agreement and/or the ability to purchase any Fuel Products from GHRA FUELS, (vi) each of the Customer Parties hereby fully and unconditionally consents to the use of any and all consumer and/or business credit reports of any of the Customer Parties by the GHRA FUELS PARTIES and/or their respective affiliates following the completion and execution of this Agreement as well as periodically as deemed necessary at the sole discretion of the GHRA FUELS PARTIES as part of the continuous credit evaluation and review process for the purpose of initially approving and maintaining the credit relationship of the Customer and the issuance of credit to the Customer by GHRA FUELS, and (vii) each of the Customer Parties hereby authorizes the release of any and all business, credit, and/or trade reference information and details of such Customer Parties, and hereby fully, finally, and unconditionally releases the GHRA FUEL PARTIES, the above named bank(s), and other listed references from any and all liabilities, costs, expenses, damages, and claims of any kind in connection with the release and use of any such business, credit, and/or trade reference information relating to the Customer Parties in connection with or in furtherance of the transactions contemplated under this Agreement.

CERTAIN AGREEMENT TERMS AND CONDITIONS

The Customer Parties, for and in consideration of the premises and the agreements herein contained in the entire GHRA FUELS Application Package and Agreement, including in consideration for and as a condition to GHRA FUELS reviewing and considering the Customer's credit and suitability for a fuel supply relationship with GHRA FUELS, the sufficiency of which is hereby acknowledged and confessed, the Customer Parties hereby agree to all of the terms and conditions found in this Credit Application and Agreement, Guaranty, and Security Agreement (this "Agreement"). Applicant confirms and verifies that all of the information provided in this Agreement to GHRA FUELS, the other GHRA FUELS PARTIES, and their respective affiliates, subsidiaries, and divisions, is accurate and shall be the property of GHRA FUELS. The information and contents of these documents may be shared by GHRA FUELS with the other GHRA FUELS PARTIES and their respective affiliated entities. Furthermore, the GHRA FUELS PARTIES ARE granted access by the Customer Parties to inquire about the credit, financial standing and history, and payment history of the Customer Parties. The Customer Parties grant full access and release of this information to the GHRA FUELS PARTIES.



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The Customer Parties agree to pay GHRA FUELS (or any of the other GHRA FUELS PARTIES designated by GHRA FUELS) for all sales of Fuel Products and other items/services to the Customer on the account in Net 7 days or Load to Load in accordance with the specific terms on the invoice. Payments must be made to GHRA FUELS at 12790 S. Kirkwood Rd., Stafford, TX 77477 in such form and in such manner as may be required by GHRA FUELS from time to time. Any portion of the amount due not paid by the due date established by GHRA FUELS will be considered past due and subject to, among others, a finance charge. The finance charge shall be computed by multiplying the previous balance as shown on the statement times a monthly rate of 1.5% which is an annual percentage of eighteen percent (18%). In the event the above rate is more than the legal rate allowed by law, then the finance charge shall be computed at the highest legal rate allowed by the State of Texas, not to exceed eighteen percent (18%) per annum. Returned Checks and EFT (Electronic Funds Transfer) will be assessed the maximum charge permitted under applicable law. The GHRA FUELS PARTIES reserve the right, in addition to any other remedies available to them under this Agreement or under law or equity, to immediately suspend deliveries at any time without notice and without any liability in the event that, among others, (i) the Customer fails to timely pay for any one or more shipments/deliveries when due, (ii) the Customer's account or amounts owed under Customer's account, exceed the approved credit limit extended to the Customer, (iii) there is a breach, violation, or non-compliance of any of the terms this Agreement by any of the Customer Parties, (iv) it is discovered that incorrect information was provided or that correct information was withheld by the Customer Parties under this Agreement or in connection with the transactions contemplated herein, (v) any of the Customer Parties or their respective business operations are in violation of applicable law, or (vi) if determined at the sole discretion of GHRA FUELS. Notwithstanding the foregoing, GHRA FUELS, at its sole and absolute discretion, may terminate this Agreement or elect not to further conduct business with Customer at any time without notice and without liability.

At any point that the applicant wishes to discontinue services with GHRA FUELS, the entire amount of outstanding balances and payables of the Customer Parties to GHRA FUELS shall become immediately due and payable. Invoices or unpaid amounts will begin to accrue and owe a late charge of 1% per month (12% annually) starting on their respective due dates. Returned payments will also be assessed a late fee of \$75 (seventy-five dollars). The Customer Parties agree to be jointly and severally liable for and to pay any and all costs and expenses, including, without limitation, attorney fees, incurred by the GHRA FUELS PARTIES in enforcing this Agreement, collecting past due accounts or amounts owed, and/or any amounts with respect to any breaches, defaults, or disputes with respect to this Agreement and the transactions contemplated hereunder. The Customer Parties hereby agree to also pay GHRA FUELS for any product(s) remaining in the Customer's tank(s) and/or permit GHRA FUELS, if GHRA FUELS so elects at its discretion, to retrieve any and all product(s) loaned to applicant by GHRA FUELS without any liability to the GHRA FUELS PARTIES whatsoever. The Customer Parties hereby each certifies and warrants that any credit extended as a result of this Agreement will be used solely for business purposes and will not be used for personal use. Each of the undersigned certifies that he/she is authorized to sign this Agreement on behalf of himself/herself and the Company and hereby bind the Customer Parties to this Agreement. Each of the undersigned, on behalf of the Customer Parties, hereby agrees and fully understands that this is a legally binding document and agrees to be bound by the terms and conditions set forth in this Agreement. The Customer Parties acknowledge receiving an exact copy of this Agreement.

CREDIT POLICIES; PURCHASE ORDER CONFIRMATIONS AND DELIVERIES; GUARANTEES: GHRA FUELS will issue statements per its delivery cycles. COD restrictions may be placed on any past due account or as may be otherwise determined by GHRA FUELS. GHRA FUELS, the GHRA FUELS PARTIES, or their respective affiliates reserves the right to decline credit to the Customer or the Customer Parties. In the event any credit is extended, GHRA FUELS, the GHRA FUELS PARTIES, or their respective affiliates, may change or revoke the Customer's available credit at any time in their sole discretion. Any purchases by the Customer in excess of a prior credit limit shall be deemed a one-time waiver of the existing credit limit. The Customer Parties agree to pay for all purchases notwithstanding the credit limit in effect at that time of purchase. The Customer Parties represent and warrant that the Customer is a commercial enterprise or a governmental body, and that the account will only be used in the conduct of its business and only for commercial purposes. The Fuel Products and other goods/services purchased will not be made available for personal, family or household purposes. GHRA FUELS may, at its sole option and discretion, refuse to permit charges to be incurred on the account. Claims or disputes with respect to the Fuel Product(s) delivered or with respect to delivery matters must be made immediately but no later than twenty-four (24) hours after delivery. Claims arising from invoices must be made within seven (7) calendar days of the invoice date. Upon receipt of the Customer's order request for Fuel Product(s), GHRA FUELS will determine, at its sole discretion, whether to accept such order. In the event GHRA FUELS agrees to accept the volume quantity/type of fuel for the order or if GHRA FUELS agrees to accept a modified volume quantity/type of fuel, the Customer will be able to access GHRA FUELS' confirmation accordingly. Any terms and conditions of purchase order(s) and other similar documents submitted by or on behalf of the Customer or the other Customer Parties shall be invalid and null and void without any legal effect and do not become a part of the Agreement with GHRA FUELS or with any of the GHRA FUELS PARTIES or their respective affiliates unless expressly approved and expressly accepted in a signed writing by an authorized officer of GHRA FUELS. Any variations made to the terms and conditions of this Agreement by the Customer shall be void and have no effect. Delivery of Fuel Products to the delivery location/facility of the Customer may be made without obtaining signatures upon delivery. Delivery times are "best efforts" only. Neither GHRA FUELS nor its affiliated entities shall be responsible for any claims or damages whatsoever for failure to deliver at certain times. The Customer Parties hereby certify that the delivery location is unbranded and will immediately notify GHRA FUELS of any change in writing by certified mail. The title to the Fuel Products delivered hereunder shall pass to the Customer upon delivery to the Customer's delivery location. In the event that the Customer Parties' action or inaction results in any loss of or damage to the Fuel Products during the delivery/receipt process prior to the title passing to the Customer, then the Customer Parties shall be liable for such loss of or damage to the Fuel Products that results from such action or inaction. All applicants, including the Customer Parties, are subject to the credit policies and procedures of GHRA FUELS, the GHRA FUELS PARTIES, and their respective affiliates, as such policies and procedures may be amended or modified from time to time. It further understood and agreed that GHRA FUELS requires all individuals who serve as principals, officers, owners, shareholders, members, or partners of an entity (corporation, LLCs, LPs, or other entities) sign the Guaranty that is part of this Agreement, personally guaranteeing all debts and



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obligations accrued by the entity. In addition, GHRA FUELS reserves the right to also ask for a separate corporate guaranty by another entity approved by GHRA FUELS for the benefit of the Customer.

SECURITY AGREEMENT AND LIENS. To induce GHRA FUELS (i) to approve the Customer and permit the Customer to request the delivery of Fuel Products, from time to time, from GHRA FUELS to the Customer and (ii) to extend credit to the Customer Parties for the purchase of Fuel Products from GHRA FUELS, the Customer Parties hereby grant and pledge to GHRA FUELS a purchase money security interest in the Fuel Products sold under this Agreement and a security interest in and first-priority lien (collectively, the "Security Interest and Lien") upon all of the non-consumer assets of the Customer Parties, whether constituting goods, payment intangibles, general intangibles, and/or otherwise, including all assessments to and replacements thereof, and all proceeds of the foregoing, wherever located and whether presently owned or hereafter acquired (collectively, the "Collateral"). The Security Interest and Lien on the Collateral is hereby granted to GHRA FUELS by the Customer Parties in order to secure the full and prompt payment of all amounts and sums now due or that may in the future be owing or otherwise incurred, from time to time, by any of the Customer Parties to any of the GHRA FUELS PARTIES, including, without limitation, in connection with or with respect to this Agreement, the supply and purchase of Fuel Product(s), or otherwise (collectively, the "Obligations"). The Customer Parties hereby authorize the GHRA FUELS PARTIES to undertake and perform any and all actions necessary for GHRA FUELS to perfect its Security Interest and Lien hereunder, including, but not limited to, filing UCC financing statements and/or fixture filings with respect to any real property (including filing a copy of this Security Agreement) with the appropriate governmental bodies or authorities. GHRA FUELS shall have all of the rights and remedies of a secured party under the Uniform Commercial Code in effect in Texas, which remedies shall be cumulative and not exclusive. The Customer Parties hereby represent and warrant to the GHRA FUELS PARTIES that they have the authority, and have completed all proceedings and obtained all approvals and consents necessary, to execute, deliver, and perform this Security Agreement (as part of the Agreement) and the transactions contemplated hereby. This Security Agreement constitutes a legal, valid, and binding obligation of the Customer Parties, enforceable in accordance with its terms, and this Security Agreement grants to GHRA FUELS a valid, first-priority perfected and enforceable lien on the Collateral. The Customer Parties hereby agree and covenant to procure, execute, and deliver from time to time any indorsements, notifications, registrations, assignments, financing statements, certificates of title, and other writings or instruments deemed necessary or appropriate by GHRA FUELS to perfect, maintain, and protect its Security Interest and Lien in the Collateral hereunder and the priority thereof. A default under this Security Agreement shall be deemed to exist upon the occurrence of any of the following (an "Event of Default"): (i) Any of the Obligations shall not be paid when due (ii) the Customer Parties shall fail to observe any other term or condition of the Agreement or there shall otherwise occur any event which would permit GHRA FUELS to accelerate amounts outstanding thereunder, and/or (iii) there is a breach of any terms and conditions of this Agreement. Upon the occurrence of any such Event of Default, which remains uncured for a period of five (5) days, GHRA FUELS or its designee may, at its option, and without notice to or demand on the Customer Parties and in addition to all rights and remedies available to GHRA FUELS under the Agreement, at law, in equity, or otherwise, do any one or more of the following: (a) Foreclose or otherwise enforce GHRA FUELS' Security Interest and Lien in any manner permitted by law, or provided for in this Security Agreement, (b) Sell, lease, or otherwise dispose of any Collateral at one or more public or private sales at GHRA FUELS' place of business or any other place or places, (c) Recover from the Customer Parties all costs and expenses, including, without limitation, reasonable attorney fees, incurred or paid by the GHRA FUELS PARTIES in exercising any right, power, or remedy provided by this Security Agreement, (d) The Customer Parties shall be given seven (7) business days prior notice of the time and place of any public sale or of the time after which any private sale or other intended disposition of Collateral is to be made, which notice the Customer Parties agree shall be deemed reasonable notice thereof, and/or (e) Upon any sale or other disposition pursuant to this Security Agreement, GHRA FUELS or its designee shall have the right to deliver, assign, and transfer to the purchaser thereof the Collateral or portion thereof so sold or disposed of, where each purchaser at any such sale or other disposition (including the GHRA FUELS PARTIES) shall hold the Collateral free from any claim or right of whatever kind by the Customer Parties or their assignees, including any equity or right of redemption of the Customer Parties, and the Customer Parties specifically waive (to the extent permitted by law) all rights of redemption, stay or appraisal which they have or may have under any rule of law or statute now existing or hereafter adopted. The rights, powers, and remedies of the GHRA FUELS PARTIES under this Security Agreement shall be in addition to all rights, powers, and remedies given to the GHRA FUELS PARTIES by virtue of any statute or rule of law, this Agreement or any other agreement, all of which rights, powers, and remedies shall be cumulative and may be exercised successively or concurrently without impairing GHRA FUELS' security interest in the Collateral. Any waiver, forbearance or failure or delay by GHRA FUELS in exercising any right, power, or remedy shall not preclude the further exercise thereof, and every right, power, or remedy of GHRA FUELS shall continue in full force and effect until such right, power or remedy is specifically waived in a writing executed by GHRA FUELS. The Customer Parties hereby waive any right to require GHRA FUELS to proceed against any person or to exhaust any Collateral or to pursue any remedy in GHRA FUELS' power. All rights of GHRA FUELS under this Security Agreement shall inure to the benefit of its successors and assigns, and all obligations of the Customer Parties shall bind their respective heirs, executors, administrators, successors, and assigns. The term Customer Parties shall be deemed to infer to each of the undersigned Customer Parties as well as to all of them, and their obligations and agreements hereunder shall be joint and several. Except as otherwise defined herein, terms used herein in this Security Agreement section of this Agreement shall have the meanings given them in the Uniform Commercial Code of Texas.

NO WARRANTIES; LIMITATION OF LIABILITY; INDEMNITY: THE CUSTOMER PARTIES FULLY AND UNCONDITIONALLY UNDERSTAND AND AGREE THAT THE GHRA FUEL PARTIES HAVE NOT MADE AND WILL NOT MAKE ANY REPRESENTATIONS OR WARRANTIES OF ANY KIND AS TO THE FUEL PRODUCTS, THE ISSUANCE OF CREDIT, DELIVERY MATTERS, OR OTHERWISE, WHETHER EXPRESS OR IMPLIED, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE. IN NO EVENT SHALL ANY OF THE GHRA FUELS PARTIES BE LIABLE TO THE CUSTOMER, THE OTHER CUSTOMER PARTIES OR THE INVITEES/GUESTS OF THE CUSTOMER, WHETHER UNDER THIS AGREEMENT OR OTHERWISE IN CONNECTION WITH THIS AGREEMENT, FOR ANY LOSS OF PROFITS, LOSS OF PRODUCTION, LOSS OF USE, BUSINESS



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INTERRUPTION, LOSS OF BUSINESS, LOSS OF GOODWILL/REPUTATION, WASTED EXPENDITURE, OR ANY INCIDENTAL, INDIRECT, SPECIAL, EXEMPLARY, PUNITIVE, OR CONSEQUENTIAL DAMAGES, COSTS, EXPENSES, LOSSES OF ANY KIND OR TYPE. THE LIMITATION CONTAINED IN THIS SECTION SHALL SURVIVE TERMINATION OR EXPIRATION OF THIS AGREEMENT FOR ANY REASON WHATSOEVER. FOR THE AVOIDANCE OF DOUBT, NONE OF THE GHRA FUELS PARTIES SHALL BE LIABLE TO ANY OF THE CUSTOMER PARTIES FOR FINES OR PENALTIES LEVIED AGAINST ANY OF THE CUSTOMER PARTIES, INCLUDING ALL CIVIL, CRIMINAL, AND PUNITIVE FINES AND PENALTIES, WHETHER OR NOT SUCH FINES OR PENALTIES RESULT FROM THE NEGLIGENCE OR WILFUL MISCONDUCT OF THE GHRA FUELS PARTIES. THE CUSTOMER PARTIES SHALL INDEMNIFY AND DEFEND THE GHRA FUELS PARTIES AND THEIR MEMBERS, SUBSIDIARIES, AFFILIATES AND JOINT VENTURE PARTNERS, AND THEIR RESPECTIVE DIRECTORS, OFFICERS, MANAGERS, EMPLOYEES, AND AGENTS ("INDEMNIFIED PARTY") AGAINST ALL CLAIMS, DEMANDS, CAUSES OF ACTION, SUITS, DAMAGES, JUDGMENTS, LIENS, PENALTIES, AND EXPENSES, INCLUDING, WITHOUT LIMITATION, ATTORNEYS' FEES AND LITIGATION COSTS, WHETHER INCURRED FOR AN INDEMNIFIED PARTY'S PRIMARY DEFENSE OR FOR ENFORCEMENT OF ITS INDEMNIFICATION RIGHTS (COLLECTIVELY, "INDEMNITY CLAIM") INCLUDING, WITHOUT LIMITATION, ANY INDEMNITY CLAIM FOR HARM, INJURY OR DEATH TO ANY PERSON, OR DAMAGE TO PROPERTY OR TO THE ENVIRONMENT ARISING OUT OF, OR IN CONNECTION WITH: (1) THE CUSTOMER PARTIES' PERFORMANCE OR NON-PERFORMANCE UNDER THIS AGREEMENT INCLUDING, WITHOUT LIMITATION, THE POSSESSION, SALE, TRANSPORTATION, STORAGE, HANDLING, BLENDING, AND USE OF THE FUEL PRODUCTS BY THE CUSTOMER PARTIES, THEIR EMPLOYEES, AGENTS, CUSTOMERS, INVITEES, CONTRACTORS AND ASSIGNS; (2) THE ADVERSE EFFECTS OF END-USE APPLICATION OF ANY FUEL PRODUCTS, INCLUDING ANY BIODIESEL BLEND PRODUCTS; AND (3) THE ACTIONS OR INACTIONS OF THE CUSTOMER PARTIES AND THEIR INVITEES, GUESTS, AND CUSTOMERS.

VENUE & CHOICE OF LAW: The Customer Parties agree that this Agreement shall be governed solely by and construed in accordance with the internal laws of the State of Texas without reference to conflicts of law principles, with exclusive venue and jurisdiction being in the state and federal courts of Harris County, Houston Texas (which is GHRA FUELS' principal place of business).

CHANGE OF OWNERSHIP; CONFIDENTIALITY; NON-CIRCUMVENTION: Each of the Customer Parties understands that it must notify GHRA FUELS in writing and by certified mail of any changes in ownership of the Customer Parties, the name of the business, or the structure of the business under which credit is established. The Customer Parties further agree that, at the time of any change of ownership, all amounts due to and/or invoiced by GHRA FUELS, THE GHRA FUELS PARTIES, and their respective affiliates, shall become immediately due and payable regardless of the due date on any of the invoice(s). The Customer Parties hereby acknowledge that they have received and will continue to receive sensitive proprietary and highly confidential information of the GHRA FUELS PARTIES in connection with and during the course of this Agreement (whether or not such information is expressly marked as confidential) (collectively, the "Confidential Information"). The Customer Parties hereby agree and unconditionally covenant that they (i) shall not disclose such Confidential Information outside of the ownership group of the Customer and (ii) shall keep all such Confidential Information, including, without limitation, the terms and conditions of this Agreement and the pricing they receive for any Fuel Products, as strictly confidential and limited to and contained within the ownership group of the Customer. The Customer Parties also hereby agree and covenant that they shall not use any of the Confidential Information that are provided or gain access to in order to circumvent, avoid, bypass, or obviate any of the GHRA FUELS PARTIES with respect to any business, investment, or other opportunities.

COLLECTION AND ATTORNEYS FEES: In the event of default or dispute, and also if this account is turned over to an agency and/or an attorney for collection, the undersigned Customer Parties agree to pay all reasonable attorney's fees, court costs, and /or costs for collection whether or not suit is filed.

MISCELLANEOUS: This Agreement (including the Guaranty and Security Agreement herein) constitutes the sole and entire agreement regard to the subject matter hereof and supersedes all prior agreements, understandings, negotiations, representations and proposals, whether written or oral, relating to the subject matter contained herein. None of the Customer Parties shall assign or otherwise transfer this Agreement to any other party without the prior written consent of GHRA FUELS in its sole and absolute discretion. Any purported assignment in violation of this provision shall be null and void. This Agreement shall be binding upon the Customer Parties and their respective heirs, successors, and permitted assigns and inures to the benefit of GHRA FUELS, the other GHRA FUELS PARTIES, and their respective affiliates and each of their respective heirs, successors, and permitted assigns. No waiver by the GHRA FUELS PARTIES of any of the provisions of this Agreement shall be effective unless explicitly set forth in writing and signed by an authorized officer of the GHRA FUELS PARTIES. Except as otherwise set forth in this Agreement, the failure or delay of the GHRA FUELS PARTIES to enforce any provision of this Agreement shall not be construed as a waiver or limitation of GHRA FUELS PARTIES' right to subsequently enforce and compel strict compliance with every provision of this Agreement, nor shall any single or partial exercise of any right, remedy, power or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power or privilege. If any provision of this Agreement is found by a court of competent jurisdiction to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court of competent jurisdiction finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited. Except as expressly provided in this Agreement, all rights and remedies provided in this Agreement are cumulative and not exclusive, and the exercise by any of the GHRA PARTIES of any right or remedy does not preclude the exercise of any other rights or remedies that may now or subsequently be available at law, in equity, by statute, in any other agreement with the Customer Parties or otherwise. For purposes of this Agreement, all electronic, scanned, and/or facsimile signatures shall have the same force and effect as an original signature.



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AUTHORITY OF SIGNATURE AND TITLE: The undersigned Customer Parties warrant that they have fully read, understood, and reviewed this Agreement with their respective legal counsel, and as evidenced by their signatures below, on behalf of themselves and the Customer/Customer entity, they hereby agree to and execute this Agreement on behalf of themselves and the Customer/Customer Entity. The undersigned applicant(s)/Customer Parties hereby represent and warrant that, by their execution below, they also have the authority to fully bind (and do hereby bind) their corporate entity (Customer) to this Agreement.

CUSTOMER PARTIES/(CUSTOMER ENTITY NAME: _____):

- 1) **SIGNATURE** _____ **DATE** _____ **PHONE #** _____
PRINT NAME _____ **TITLE** _____
- 2) **SIGNATURE** _____ **DATE** _____ **PHONE #** _____
PRINT NAME _____ **TITLE** _____
- 3) **SIGNATURE** _____ **DATE** _____ **PHONE #** _____
PRINT NAME _____ **TITLE** _____

Dated Effective: _____ (the "Effective Date").

ABSOLUTE CONTINUING PERSONAL/CORPORATE GUARANTY

The undersigned personal and/or corporate guarantor(s), recognizing that his/her/it individual personal and business credit history may be a necessary factor in the evaluation of their personal or corporate guarantee, hereby consents to and authorizes the use of a consumer credit report on the undersigned by the above name business credit grantor, from time to time as may be needed in the credit evaluation process.

From and after the Effective Date set forth in this Agreement above, each of the undersigned (collectively, the "Guarantor"), for and in consideration of GHRA FUELS (i) agreeing to consider and, if approved, sell Fuel Product(s) to the Customer and (ii) granting and extending credit for the purchase of Fuel Product(s) to the Customer Parties as set forth above, hereby unconditionally and irrevocably personally guarantees, as primary obligor and not merely as surety, to GHRA FUELS and the GHRA FUELS PARTIES, the full and prompt payment of all amounts and sums now due or that may in the future be owing or otherwise incurred by any of the Customer Parties to any of the GHRA FUELS PARTIES, including, without limitation, in connection with or with respect to this Agreement, the supply and purchase of Fuel Product(s), or otherwise (collectively, the "Obligations"). All demands, presentments, notices of protest and of dishonor, and all other notices of any kind or nature, including those of action or non-action of the above applicant, are expressly waived by Guarantor. Guarantor hereby further waives the right to require any of the GHRA FUELS PARTIES to proceed against the Customer Parties above and/or any other party and agrees that the GHRA FUELS PARTIES may proceed against Guarantor on this Guaranty without taking any action against the above Customer Parties or any other party. The GHRA FUELS PARTIES shall not be required to exhaust any right or remedy or take any action against the Customer Parties or any other person or entity or any collateral. Guarantor agrees and covenants that Guarantor will not exercise any rights which Guarantor may have or may acquire against by way of subrogation or otherwise under this Guaranty by any payment made hereunder, until all of the Obligations shall have been paid in full in cash to GHRA FUELS. It is expressly understood that this personal guaranty shall be one of payment and not of collection only.

Guarantor guarantees that the Obligations shall be paid strictly in accordance with this Agreement and the requirements of the GHRA FUELS PARTIES regardless of any law, regulation or order now or hereafter in effect of any jurisdiction affecting any of such terms or the rights of GHRA FUELS PARTIES with respect thereto. The liability of Guarantor under this Agreement and Guaranty is absolute and unconditional irrespective of: (a) any change in the time, manner or place of payment, of or in any other terms of, all or any of the transaction documents, if applicable, or Obligations, or any other amendment or waiver of or any consent to departure from any of the terms of any applicable transaction document or Obligation; (b) any release or amendment or waiver of, or consent to departure from, any other guaranty or support document, or any exchange, release or nonperfection of any collateral, for all or any of the transaction documents (including the Security Agreement constituting a part of this Agreement) or Obligations; (c) any present or future law, regulation or order of any jurisdiction (whether of right or in fact) or of any agency thereof purporting to reduce, amend, restructure or otherwise affect any term of this Agreement or any applicable transaction document or Obligations; (d) without being limited by the foregoing, any lack of validity or enforceability of this Agreement, any applicable transaction document or Obligation, or any failure to receive an governmental approval relating thereto; and/or (e) any other defense whatsoever that might constitute a defense available to, or discharge of, the Customer Parties or a Guarantor (including, without limitation, the bankruptcy or reorganization of any of the Customer Parties).

This Guaranty is a continuing guaranty and shall remain in full force and effect until payment in full of all Obligations and other amounts payable under this Guaranty and until the Agreement is expressly terminated by GHRA FUELS in writing and no further transactions are conducted or may be



GHRA FUELS, LLC

12790 S. Kirkwood Road, Stafford, TX 77477

Ph: 281-295-5359 creditapp@ghrafuels.com

conducted under the Agreement or otherwise between GHRA FUELS and the Customer Parties. This Guaranty shall continue to be effective or be reinstated, as the case may be, if at any time any payment of any of the Obligations is rescinded or must otherwise be returned by GHRA FUELS on the insolvency, bankruptcy or reorganization of any of the Customer Parties or otherwise, all as though the payment had not been made. All payments by Guarantor shall be made in the manner, at the place and in the currency required by the Agreement. No amendment or waiver of any provision of this Guaranty, nor consent to any departure by Guarantor therefrom, shall be effective unless it is in writing and signed by an authorized officer of GHRA FUELS, and then the waiver or consent shall be effective only in the specific instance and for the specific purpose for which given. No failure on the part of the GHRA FUELS PARTIES to exercise, and no delay in exercising, any right under this Guaranty shall operate as a waiver or preclude any other or further exercise thereof or the exercise of any other right.

Guarantor represents and warrants that the execution, delivery and performance of this Guaranty: (i) has been duly authorized by all necessary action; (ii) does not violate any agreement, instrument, law, regulation or order applicable to guarantor or its organizational or operational documents; (iii) does not require the consent or approval of any person or entity, including but not limited to any governmental authority, or any notice of filing or registration of any kind; and (iv) is the legal, valid and binding obligation of Guarantor enforceable against Guarantor in accordance with its terms. Guarantor represents and warrants that Guarantor is duly organized and validly existing under the laws of the state of its organization (to the extent the Guarantor is an entity), and has all requisite organizational power and authority to conduct its business, to own its properties and to execute and deliver, and perform all of its obligations under, this Guaranty. Guarantor further represents and warrants that there are no causes, claims, actions, suits or proceedings pending or threatened against or affecting Guarantor that may adversely affect the financial condition, operations, properties or business of Guarantor or the ability of Guarantor to perform its obligations under this Guaranty. In addition, Guarantor represents and warrants that it is beneficial to and in the best interest of Guarantor to enter into and provide this Guaranty.

Guarantor agrees to pay the GHRA FUELS PARTIES' attorney fees and all other costs and expenses that may be incurred by the GHRA FUELS PARTIES in enforcement of this Guaranty that is part of the Agreement. With respect to this Guaranty, the singular includes the plural. If more than one executes this Guaranty, the term Guarantor shall be deemed to infer to each of the undersigned Guarantors as well as to all of them, and their obligations and agreements hereunder shall be joint and several. Guarantor agrees that this Guaranty (as part of the Agreement) shall be governed solely by and construed in accordance with the internal laws of the State of Texas without reference to conflicts of law principles, with exclusive venue and jurisdiction being in the state and federal courts of Harris County, Houston Texas (which is GHRA FUELS' principal place of business). Guarantor expressly authorizes the GHRA FUELS PARTIES to investigate and inquire about Guarantor's financial background, credit, payment and employment history, and to answer any questions about GHRA FUELS' credit experience with Guarantor as a result of this personal/corporate Guaranty, and Guarantor hereby expressly authorizes the release of this information to GHRA FUELS or its agents. Guarantor shall unconditionally, fully, and finally release and hold the GHRA FUELS PARTIES harmless in this regard.

Each Guarantor has caused this Guaranty to be executed and delivered as of the Effective Date set forth above.

- 1) GUARANTOR NAME: _____ Driver License and State: _____ SSN: _____
ADDRESS: _____ PHONE: _____ EMAIL: _____
SIGNATURE: _____ DATE: _____
- 2) GUARANTOR NAME: _____ Driver License and State: _____ SSN: _____
ADDRESS: _____ PHONE: _____ EMAIL: _____
SIGNATURE: _____ DATE: _____
- 3) GUARANTOR NAME: _____ Driver License and State: _____ SSN: _____
ADDRESS: _____ PHONE: _____ EMAIL: _____
SIGNATURE: _____ DATE: _____
- 4) ENTITY/CORPORATE GUARANTOR NAME: _____ EIN: _____
STATE OF FORMATION: _____ ADDRESS: _____ PHONE: _____ EMAIL: _____
SIGNATURE – BY: _____ DATE: _____
PRINTED NAME OF AUTHORIZED OFFICER: _____ TITLE OF CORPORATE OFFICER/SIGNATORY: _____



GHRA FUELS, LLC

12790 S. Kirkwood Road, Stafford, TX 77477

Ph: 281-295-5359 creditapp@ghrafuels.com

ELECTRONIC FUNDS TRANSFER AUTHORIZATION AGREEMENT

General Information

Customer/Company Name etc.:				
Mailing Address:	Street	City	State	Zip
Telephone Number	EFT Fax Number		E-mail Address	

Above named "Customer" hereby authorizes GHRA FUELS, LLC and its affiliated entities (collectively, "GHRA FUELS") to originate Automatic Clearinghouse (ACH) and/or other electronic funds transfer credit/debit entries to Customer's account, indicated below, and hereby authorizes the financial, depository, and/or banking institution named below (hereinafter "Financial Institution"), to accept and credit or debit the amount of such entries to the Customer's account.

BANK INFORMATION

Bank Name	Branch	
Address	Bank Routing Number	Customer Account Number
City, State, Zip Code	PHONE	FAX
Bank Contact Name	Bank Contact Title	

This Electronic Funds Transfer Authorization Agreement ("EFT Agreement") shall be effective immediately upon execution below and is part of, among others, Customer's Credit Application and Agreement, Guaranty, and Security Agreement with GHRA FUELS, LLC for the purchase of fuel products from GHRA FUELS, LLC, as well as any other applicable agreements with GHRA FUELS or for amounts otherwise owed to GHRA FUELS. Customer shall be responsible for any loss which may arise by reason of any error, mistake or fraud regarding the information provided in this EFT Agreement or in any other Agreement with GHRA FUELS.

This authority herein in this EFT Agreement shall remain in effect until the later of (i) thirty (30) days after Financial Institution, at the address shown above, and GHRA FUELS, LLC, at the address shown above, have both received an unconditional written cancellation notice from Customer via U.S. certified mail or (ii) at such time where both Financial Institution and GHRA FUELS, LLC each have had a reasonable opportunity to act following the actual receipt of an unconditional written cancellation notice from Customer. Notice of cancellation shall in no way affect credit or debit entries initiated prior to the actual receipt and processing of such notice, nor shall such notice of cancellation release Customer and its affiliates from their payment obligations to GHRA FUELS, whether under the Agreement or otherwise. GHRA FUELS, LLC may, at any time after the termination of the Agreement or any working relationship with Customer and its affiliates, without notice, debit Customer's account for any outstanding payments prior to the effective termination of this EFT Agreement. In addition to the payment of regularly invoiced amounts, if at any time Customer exceeds its credit limit with GHRA FUELS, LLC as established and determined at the sole discretion of GHRA FUELS, then GHRA FUELS, LLC shall be authorized to immediately debit Customer's account for such excess amount regardless of whether such excess amount has been invoiced or is disputed by Customer. Customer understands that GHRA FUELS, LLC may suspend this EFT Agreement at any time.

Customer understands that the Automated Clearinghouse electronic funds transfer debit entry will be accepted by Financial Institution if sufficient funds are available in Customer's account listed above and Customer agrees separately with and covenants to GHRA FUELS, LLC to maintain sufficient funds at all times in this account.

Customer, by executing below, hereby authorizes GHRA FUELS to commence electronic fund transfers from the above provided bank account.

Authorized Signature	Position (must be owner or officer)	Date
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**** Please return this form, with a copy of a voided check, to GHRA FUELS, LLC at the address provided above ****